

		The Court's instruction that "[k]nowledge of an encroachment is not knowledge of an easement" was consistent with applicable law including <i>Lee v. Fidelity National Title Ins. Co.</i> (2010) 188 Cal.App.4th 583, 600; <i>65 Butterfield v. Chicago Title Ins. Co.</i> (1999) 70 Cal.App.4th 1047, 1054; and <i>Overholtzer v. Northern Counties Title Ins. Co.</i> (1953) 116 Cal.App.2d 113, 126. In the absence of California legal authority clearly holding Plaintiff is entitled to fees under (<i>Brandt v. Superior Court</i> (1985) 37 Cal.3d 813, 817) for a post-trial motion such as motion for new trial, the Court declines to award Plaintiff attorney fees for opposing this motion. Defendant shall provide notice.
9	Icon Identity Solutions, Inc. v. Santa Mix, Inc. 2021-0121240 Motion for bifurcation denied. Request for judicial notice granted.	Defendant/Cross-Complainant Santa Mix's motion to bifurcate the trial is DENIED. Icon requests for judicial notice of this Court's rulings on the prior MSJ and a San Diego court's ruling on Santa Mix's motion to bifurcate in that court should be granted as records of the courts of this state under Evidence Code section 452(d). Whether or not to grant a motion to bifurcate is vested in the sound discretion of the trial court and is subject to reversal on appeal only for a clear abuse of discretion. (<i>Grappo v. Coventry Financial Corp.</i> (1991) 235 Cal.App.3d 496, 504.) Bifurcating the trial into a first phase to try the issue of whether Icon and Stratus were licensed does not serve the convenience of witnesses and would require reintroducing key documentation into evidence. (Nicolli Decl., ¶ 6-8.) Numerous witnesses who are based in Chicago would have to travel across the country to California twice if the trial was bifurcated. Further, even if Santa Mix prevails in the first phase, its claims for disgorgement of profits must be addressed it the second phase. Thus, a second phase is necessary no matter the outcome of the first phase. Accordingly, the Court exercises its discretion to deny the Motion. Defendant shall give notice.